

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

SM LINE CORPORATION, *Respondent*.

DOCKET NO. 23-01

Served: March 11, 2024

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

ORDER ON RESPONDENT'S MOTION TO COMPEL

On February 23, 2024, Respondent SM Line Corporation filed a motion to compel production of documents, arguing that Samsung SDS America, Inc. has improperly limited its production to 2020-2021, omitting documents for 2022, and that its search and production was otherwise inadequate. On February 29, 2023, Samsung SDS filed its opposition, arguing that SM Line failed to specify a time period in the subpoena, that its limitation to 2020-2021 was reasonable under the circumstances, and that it has conducted a reasonable search.

When deciding a motion to compel, a court must consider first whether the discovery sought is relevant. Discovery obtained from a nonparty pursuant to Rule 45¹ has “the same scope as provided in Rule 26(b), thus promoting uniformity.” *In re Denture Cream Prod. Liab. Litig.*, 292 F.R.D. 120, 123 (D.D.C. 2013) (citing Advisory Committee Note to 1946 Amendment to Rule 45(d)). The information requested by SM Line from Samsung SDS is clearly relevant, as it is related to the detention and demurrage charges at issue in the complaint. But relevance is not the only consideration – searches must be tailored to the importance of the issues, the needs of the case, and the parties’ resources. See 46 C.F.R. § 502.141(e).

First, with respect to documents related to 2022, I do not find that Samsung SDS’s refusal to produce documents for this time period to be improper. On January 5, 2024, Samsung SDS filed a motion seeking to quash Respondent SM Line Corporation’s subpoena for documents. Samsung SDS argued that SM Line’s subpoena was vague because it did not specifically identify the shipments about which it sought information. I issued an order granting the motion in part –

¹ The Commission regularly looks to cases interpreting the Federal Rules of Civil Procedure for guidance on such issues. See 46 C.F.R. § 502.12 (“for situations which are not covered by a specific Commission rule, the Federal Rules of Civil Procedure will be followed to the extent that they are consistent with sound administrative practice”).

with respect to certain corporate information unrelated to the vagueness issue – but otherwise denying the motion, finding that while “the subpoena does not contain a list of shipments, it argues that it does not have such a list, and that Samsung nevertheless correctly ascertained that the subpoena sought information regarding Samsung Electronics America shipments from 2020-2021 that shipped on “store door” or carrier haulage terms.” January 24, 2024 Order, p. 4. At no point in its opposition to the motion to quash did SM Line take issue with this characterization of the requested information (repeating it at Opposition to Mot. to Quash, p. 3). And the only instruction in the subpoena with respect to a time period applicable to the requests at issue here is that Samsung SDS produce documents “related to the Containers that SEA claims being at issue in SEA’s complaint.” Samsung SDS’s interpretation of those containers to be those shipped in 2020-2021 appears to be based on paragraph 37 of the complaint.

Whether this is the best reading of the complaint or not is not the issue – in the absence of a specified time period it is a reasonable reading, echoed by SM Line in its opposition to the motion to quash and again in my order on the motion to quash, without correction from SM Line. A party’s search needs to be reasonable, not perfect. Reasonableness is based on the totality of the circumstances. *Prasad v. George Washington Univ.*, 323 F.R.D. 88, 92–94 (D.D.C. 2017). Given the circumstances here, I find that Samsung fairly construed the subpoena in limiting its response to 2020-2021.

As to the adequacy of the search more generally, SM Line has not provided me with any information to determine that Samsung SDS’s search was inadequate, other than its contention that the approximately 100 documents produced do not include information relating to demurrage and detention charges, which “the record” shows must exist. Mot. to Compel, p. 4-5. Samsung SDS claims that it has no such documents. Opp’n to Mot. to Compel., pp. 2-3. Without some specific reference to documents (or testimony) from which I can determine that documents relating to detention and demurrage have been withheld or overlooked, it is not appropriate for me to inquire further into the adequacy of Samsung SDS’s search. SM Line’s references to “the record,” without further citation, are not adequate to demonstrate its point. *Cf. In re Denture Cream Prod. Liab. Litig.*, 292 F.R.D. 120, 126 (D.D.C. 2013) (where documents produced by subpoenaed party allowed reasonable inference that other documents existed, and where production was so disorganized as to limit usefulness, there was sufficient evidence to conclude that further searching and production was warranted).

For the foregoing reasons, Respondent’s motion to compel production of documents from Samsung SDS is **DENIED**.

ALEX
CHINTELLA

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ALEX CHINTELLA
Date: 2024.03.11
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Alex M. Chintella
Administrative Law Judge